

MAST Solutions, LLC
Class Participation and Use of Property Agreement

WARNING: THIS DOCUMENT CONTAINS A WAIVER AND RELEASE OF YOUR LEGAL RIGHTS. DO NOT SIGN THIS AGREEMENT UNLESS YOU UNDERSTAND AND AGREE TO ITS TERMS. IF YOU HAVE ANY QUESTIONS ABOUT THIS AGREEMENT, CONSULT AN ATTORNEY *BEFORE* SIGNING.

As consideration for and a requirement of participation in training classes taught by MAST Solutions, LLC (MAST) at the Property located at 4159 County Road 161, Wharton, TX 77488, or otherwise using the Property, I, _____, agree to the terms and conditions that follow.

APPLICATION OF AGREEMENT

This agreement applies whenever I am on the Property, whether participating in a class held by MAST or using the Property privately.

REPRESENTATIONS OF PARTICIPANT

1. **Basic Skills.** I hereby represent that I have sufficient skill in the use of firearms to safely operate them in proximity of others and to safely participate in the class(es) offered taught by MAST or to safely use the firearms ranges at the Property.
2. **Use of Discretion.** I agree and understand that it is my responsibility to determine whether I may safely participate in any exercise, technique, drill or other aspect of a class and that I will not participate in those portions of a class in which I may not safely participate. I agree that I will not engage in any unsafe practice while using the Property and its firearms ranges outside of a MAST class.
3. **Rules.** While on the Property, I agree to follow all written rules and the instructions of MAST personnel and instructors.
4. **Safety Measures.** I understand that, while on the Property, it is my responsibility to be aware of all safety measures established for the Property—including knowledge of the proper emergency protocols and the proper emergency service providers to contact in the event of an injury at the Property.
5. **Guests.** I understand that I am responsible for ensuring that any guest I bring to the Property has signed a “Class Participation and Use of Property Agreement” prior to entering the Property.

ASSUMPTION OF RISK

1. **NATURE OF CLASSES.** I understand that the classes taught by MAST are intended to provide instruction in the use of firearms for competition, defensive and tactical purposes. This includes, but is not limited to, exercises utilizing live ammunition and may include advanced techniques, such as malfunction clearing, weapons transitions, movement (potentially while discharging the firearm), use of cover, non-traditional shooting positions, situational awareness, and rapid-fire shooting techniques. Classes are taught to multiple students at a time, who may each be participating in exercises simultaneously and in close proximity to one another.

2. **Other Use of Property.** If I am for any reason permitted to use the Property outside of a class taught by MAST, I understand that the same risks common to all shooting sports apply to my use of the Property and its facilities and that I may be doing so under my own discretion and without the supervision of a range safety officer. I agree that, at all times I am on the Property, it is my duty to conduct myself with safety as my first concern and to do my part to ensure that others do the same.
3. **RISKS.** I am aware that shooting sports and the use of firearms in any way inherently carries significant risk of damage to property, bodily injury and death. Specific risks include but are not limited to penetrating wounds caused by firearms, injury from other accident caused while moving or undergoing other physical activity during the course of the class (such as sprains or fractures, injury from falling or other misadventure) and other injuries common to participation in athletic or sporting activities.
4. **ACCEPTANCE OF RISKS.** By execution of this Agreement, I hereby acknowledge and assume the risks associated with participation in shooting sports, the use of firearms, participation in MAST classes or any other use of the Property and its facilities.

RELEASE AND WAIVER OF LIABILITY; INDEMNITY

1. **Released Parties.** This release and waiver of liability applies to MAST Solutions, LLC, the provider of the class; 4159 County Road 161, an individual series of Albert Investments, Series LLC, the owner of the Property; and to the owners, officers employees, contractors, agents, representatives, successors and assigns of either company (the "Released Parties").
2. **My Related Parties.** This release and waiver of liability is made on behalf of me and my personal representatives, assigns, heirs, next of kin and any other person who may assert a claim through me.
3. **Waiver and Release.** I HEREBY KNOWINGLY AND VOLUNTARILY RELEASE, WAIVE AND FOREVER DISCHARGE ANY AND ALL CLAIMS against the Released Parties related to my participation in the class and use of the Property, including claims of the negligence of the Released Parties, premises liability claims related to the conditions of the Property, claims of any kind based upon the behavior or action of another participant in the class, and claims related to my own use of the skills and techniques taught or learned during the class.
4. **Indemnity.** I HEREBY AGREE TO INDEMNIFY AND HOLD HARMLESS THE RELEASED PARTIES for, from, and against any and all liabilities, damages, claims, lawsuits, costs (including court costs, attorney's fees and costs of investigation), and actions of any kind or description for any loss of my property or the property of another, any injury to me or my death, or injury to or death of any other person arising out of my participation in activities or classes conducted by the Released Parties or other use of the Property, including the negligence—but not the gross negligence or willful misconduct—of the Release Parties.
5. **Indemnification for Minor Guests.** If I bring a Guest to a class or to use the Property and that Guest is under the age of majority in the State of Texas, I agree to indemnify and hold harmless the Released Parties for any injury, damages or claims to said minor Guest or caused by said minor Guest.

6. **Express Negligence Waiver and Indemnity.** IT IS MY EXPRESS INTENT TO RELEASE THE RELEASED PARTIES FROM THE CONSEQUENCES OF THEIR OWN NEGLIGENCE, BUT NOT FOR THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF THE RELEASED PARTIES. IT IS FURTHER MY EXPRESS INTENT TO INDEMNIFY THE RELEASED PARTIES FOR THEIR OWN NEGLIGENCE, BUT NOT FOR THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF THE RELEASED PARTIES.

MISCELLANEOUS

1. **Choice of Law.** This Agreement is to be governed by and construed under the laws of the State of Texas without regard to choice-of-law provisions or doctrines. Any dispute over this Agreement shall be brought in the State Courts of Texas.
2. **Severability.** If any provision of this Agreement is adjudicated to be illegal or otherwise unenforceable, that provision shall not apply, but all other provisions shall remain in full force and effect.
3. **No Oral Representations or Agreements.** This Agreement document represents the complete agreement between the undersigned and the Released Parties related to this matter; there are no oral or other agreements or terms not contained within the four corners of this document. No party has made any representation not contained within this document in relation to the matters herein.
4. **Warranty of Signer.** The signatory below represents and warrants that they have read and understood this document in its entirety, are at least eighteen years of age, have full authority to execute this document, and that they execute this document knowingly, freely and voluntarily.

Dated the _____ day of _____, 20____.

Name of Participant: _____

Address: _____

Phone Number: _____

Email Address: _____

SIGNATURE OF PARTICIPANT

Emergency Contact Name: _____

Emergency Contact Number: _____

Relationship to Participant: _____